

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION REPEALING RESOLUTION NO. 6479 AND DIRECTING THE RELISTING OF THE CHEYENNE AUXILIARY PUMPING STATION LOCATED AT 1504 DILLON AVENUE, CHEYENNE, WYOMING FOR SALE OR LEASE, WITH REVISED TERMS TO FACILITATE REDEVELOPMENT AND COMMUNITY BENEFIT."

WHEREAS, the Cheyenne Auxiliary Pumping Station (Pump House) located at 1504 Dillon Avenue, Cheyenne, Wyoming, is a historic structure of architectural and cultural significance within the Cheyenne community;

WHEREAS, despite its historic value, the Pump House has long been abandoned and continues to pose ongoing security and public safety concerns;

WHEREAS, while structural evaluations confirm that the building remains sound, restoration costs are estimated to exceed \$5,000,000, and the City lacks available funding to complete such work;

WHEREAS, the Governing Body previously adopted Resolution No. 6479 on July 14, 2025, offering the property for sale or lease under certain restrictive redevelopment conditions and, as those requirements limited the pool of potential purchasers or lessees, the Governing Body now seeks to broaden the terms to allow greater flexibility and encourage renewed interest while maintaining appropriate historic and aesthetic protections;

WHEREAS, to promote investment, preserve the exterior character where feasible, and support downtown revitalization, the Governing Body finds it in the public interest to reoffer the property for sale or lease with greater flexibility for redevelopment while maintaining reasonable historic and aesthetic protections; and

WHEREAS, it further serves the public interest to establish a clear timeframe for private acquisition or lease, after which the property may be demolished and repurposed for a beneficial community use consistent with Resolution No. 6479.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that Resolution No. 6479, adopted by the Governing Body on July 14, 2025, is hereby repealed and in all respects superseded by this Resolution;

BE IT FURTHER RESOLVED, that the City of Cheyenne shall relist the Pump House parcel for sale to the public consistent with the requirements of Wyoming Statute § 15-1-112(a) and with the terms and conditions set forth in this Resolution, or for lease under comparable terms, subject to final approval by the Governing Body;

BE IT FURTHER RESOLVED, that as a condition of sale or lease, the purchaser or lessee shall, to the greatest extent practicable, preserve the historic character and architectural integrity of the Pump House. Full demolition of the Pump House is prohibited. The Governing Body strongly prefers that the purchaser or lessee retain the original building footprint and structural shell of the existing structure and that any additions or modifications be compatible in design, scale, and materials with the existing structure to preserve its historic aesthetic;

BE IT FURTHER RESOLVED, that as a condition of sale or lease, the purchaser or lessee shall, as a first priority, maintain the existing facade of the Pump House to preserve the structure's historic aesthetic. If the purchaser or lessee demonstrates to the satisfaction of the City that full preservation is infeasible, the purchaser or lessee shall reuse materials from the existing facade to the greatest extent practicable and, where reuse is not possible, use materials and design features substantially similar to the original structure to maintain a comparable historic appearance;

BE IT FURTHER RESOLVED, that upon sale, the deed conveying the property shall include a restrictive covenant running with the land requiring that the purchaser, and all subsequent owners, maintain the historic features and aesthetic character of the structure as represented in the purchaser's accepted bid and as incorporated into the purchase and sale agreement. The covenant shall prohibit demolition or material alteration of the structure without the prior written consent of the City and shall be binding upon all future owners of the property and enforceable by the City;

BE IT FURTHER RESOLVED, that as a condition of sale or lease, the City of Cheyenne shall secure any necessary and appropriate easements over the property and include any other terms and conditions in the sale or lease agreement as are necessary to promote investment in and redevelopment of the downtown area;

BE IT FURTHER RESOLVED, that, in the event of sale, all proceeds shall be deposited into the Revolving Real Property Special Revenue Fund to be expended consistent with Resolution No. 6039;

BE IT FURTHER RESOLVED, that if the Pump House has not been sold or leased, and no valid contract for sale or lease exists on or before March 27, 2026, the City shall cease further efforts to sell or lease the property and initiate procurement for demolition and site conversion in accordance with City policy. All actions shall comply with applicable bidding and purchasing requirements, and the demolition contract shall be awarded to the lowest responsible bidder; and

BE IT FINALLY RESOLVED, that any existing agreements between the City and other entities related to the Pump House parcel that impede or are no longer necessary for the sale, lease, or demolition of the structure shall be cancelled, allowed to expire, or completed as appropriate to facilitate a timely and cost-effective listing or demolition of the property.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____,
2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk